

NO. 2086

THE STATE OF TEXAS
COUNTY OF TRINITY

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ESTATE OF E. W. SPLETTSTOESSER,
DECEASED.

APPLICATION TO PROBATE WILL

TO THE HONORABLE COUNTY COURT IN AND FOR SAID COUNTY:

Your applicant, Frederica Splettstoesser, would respectfully show unto the court the following:

1.

That your applicant resides and is domiciled in Trinity County, Texas, and applicant's name is Frederica Splettstoesser.

2.

That E. W. Splettstoesser is dead. That he died at the age of 89 years on the 3rd day of April, 1968, in Trinity County, Texas.

3.

That at and before his death, the said E. W. Splettstoesser resided and had his domicile in the County of Trinity, aforesaid.

4.

That at the time of his death, the said E. W. Splettstoesser was seized and possessed of real estate and personal property of the probable value of Five Thousand and No/100 Dollars (\$5,000.00) the nature of such estate being personal property situated in Trinity County, Texas, and realty in Trinity County, Texas.

5.

That E. W. Splettstoesser left a written will duly executed when he was 85 years of age and of sound mind, and herewith filed, in which your applicant was appointed independent executrix. That the subscribing witnesses to such will were Mrs. Violet Tullos and Mrs. Bertha Ellis, both of whom now reside in Trinity County, Texas.

6.

That after the making of such will no child of the said decedent was born or adopted who survived him.

7.

That applicant is the widow of decedent, and decedent is survived by descendents. The following is a list of all the heirs of decedent, together with the status of each as to age, the residence of each, marital status of each and relationship of each to decedent, to-wit:

<u>Name</u>	<u>Address</u>	<u>Age Status</u>	<u>Marital Status</u>	<u>Relation</u>
Louise S. Madden	Houston, Texas	Adult	Single	Daughter
Nina S. Sullivan	Houston, Texas	Adult	Married	Daughter

8.

That applicant is qualified and is not disqualified by law to accept letters testamentary, but seeks probate of such will as a muniment of title only.

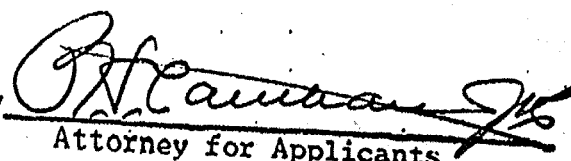
9.

That decedent was never divorced.

WHEREFORE, on this the 23rd day of July, 1968, your applicant prays that citation be issued as required by law, that said will be admitted to probate as a muniment of title, and that such other and further orders be made as to the court may seem proper.

HUTSON & CAUTHAN

By



Attorney for Applicants

P. O. Box 506

Trinity, Texas 75862

JUL 24 1968

CLERK

RECORDED & INDEXED
JUL 24 1968
CLERK

THE STATE OF TEXAS
COUNTY OF TRINITY

KNOW ALL MEN BY THESE PRESENTS:

THAT I, E. W. Splettstoesser, of the County of Trinity, State Texas, being in good health, of sound and disposing mind and memory, and above the age of twenty-one (21) years, do make and publish this my last will and testament, hereby revoking any and all other wills by me at any time heretofore made.

I.

I will and direct that all my just debts be paid by my executrix, hereinafter appointed, as soon after my death as can conveniently be done without the unnecessary sacrifice of any of the properties of my estate.

II.

I give, devise and bequeath all of my estate, real, personal or mixed, of whatsoever kind and wheresoever situated, to my beloved wife, Frederica Splettstoesser, in fee simple.

III.

I hereby constitute and appoint my beloved wife, Frederica Splettstoesser, as executrix of this my last will and testament. In the event of the death or inability of Frederica Splettstoesser, or should she refuse to act or resign, then I constitute and appoint my daughter, Nina Sullivan, as executrix of this my last will and testament. I further direct that no bond or security be required of either of the above named two persons, the one acting, as executrix of my estate.

IV.

It is my will that no further action shall be had in the probate court in the administration of my estate than to prove and

record this will and to return an inventory and appraisement of my estate and list of claims.

V.

Should my said wife not survive me, or should our deaths occur simultaneously, then I give, devise and bequeath all of my estate, real, personal or mixed, of whatsoever kind and wheresoever situated, to my beloved children, share and share alike.

VI.

It is my will that, if any child or children shall be born to my wife by me after the execution of this will, whether in addition to another child or children, or under any other circumstances, each such after-born child is hereby mentioned and it is my will that none of them shall receive anything from my estate, and it is my will that neither my will nor any part thereof shall be, because of such after-birth, revoked, nor shall my will or my estate be in any manner affected thereby.

IN TESTIMONY WHEREOF, I have declared and published this to be my last will and testament, and have executed the same in the presence of Mrs. Violet Tullos and Mrs. Bertha Ellis, my subscribing witnesses, who have, at my request and in my presence, and in the presence of each other, subscribed their names hereto as attesting witnesses, at Trinity, Texas, this the 11th day of June, A. D. 1964.

E. W. Splettstoesser

The above and foregoing instrument was herenow published as his last will, and signed and subscribed by E. W. Splettstoesser,

the testator, in our presence, and we at his request, in his presence and in the presence of each other, sign and subscribe our names hereto as attesting witnesses.

Mrs Violet Tullos

Mrs Bertha Ellis

THE STATE OF TEXAS

COUNTY OF TRINITY

BEFORE ME, the undersigned authority, a Notary Public in and for said County and State, on this day personally appeared E. W. Splettstoesser, and MRS. Violet Tullos and MRS. Bertha Ellis known to me to be the testator and the witnesses, respectively, whose names are subscribed to the foregoing instrument in their aforesaid respective capacities, and all of said persons being by me first duly sworn, the said testator, E. W. Splettstoesser, declared to me and to the said witnesses in my presence that said instrument is his last will and testament, and that he had willingly made and executed it as his free act and deed for the purposes therein expressed; and the said witnesses, each on oath, stated to me, in the presence and hearing of the said testator, that the said testator declared to them that said instrument is his last will and testament, and that testator executed same as such, and wanted each of them to sign the same as a witness; and upon their oaths each witness stated further that they did sign the same as witnesses in the presence of

the said testator and at his request; that said testator was at that time 19 years of age or over and was of sound mind; and that each of said witnesses was then at least 14 years of age.

E. W. Spletstoesser
Testator

Mrs Violet Tullos
Witness

Mrs Bertha Ellis
Witness

SUBSCRIBED and ACKNOWLEDGED before me by the said testator, E. W. Spletstoesser, and also subscribed and sworn to before me by the said witnesses, Mrs. Violet Tullos and Mrs. Bertha Ellis, all on this the 11th day of June, 1964.



J. H. Paulhan Jr.
Notary Public, Trinity County, Texas

63.1.17

NO. 2096ESTATE OF E. W. SPLETTSTOESSER,
DECEASED.Y
Y
YIN THE COUNTY COURT OF
TRINITY COUNTY, TEXAS.ORDER SETTING HEARING

This the 24th day of July, 1968, the court's attention being called to the application filed in the above entitled and numbered proceeding on the 24th day of July, 1968, and it appearing to the court that return date and time, the date for the appearance of the persons to be accordingly cited, should be fixed and the form of the citation, and the form of the return thereon, ordered it is, therefore, ORDERED that the return date shall be and it is hereby fixed as Monday, the 5th day of August, 1968, and the time, at or before 10:00 o'clock A.M.; that the time of such appearance shall be at or before such hour on such date; that the hearing shall be commenced at such hour on such date; that the form of such citation and the form of such return thereon shall be in accordance and in substantial conformity with Exhibit "A" hereto attached and made a part hereof as if copied herein; that the officers of the court, respectively attending to same, shall and are authorized to fill in, as the situation may require, any blanks above left in such forms and that substantial compliance with this order will be a compliance therewith.



County Judge, Trinity County, Texas

EXHIBIT "A"CITATIONTHE STATE OF TEXAS

TO ANY SHERIFF OR ANY CONSTABLE WITHIN THE STATE OF TEXAS-GREETING:

You are hereby commanded, by posting a copy hereof (which copy is delivered to you herewith) at the courthouse door of Trinity County, Texas, or at the place in or near such courthouse where public notices customarily are posted, for not less than ten days before the return day hereof, exclusive of the first day of service by so posting, to serve this citation and thereby command, require and cite all persons and all parties interested in the estate of E. W. Spletstoeser, deceased, and such service by posting shall be effective to command, require and cite them and each of them, and they and each of them are hereby commanded, required and cited to appear, in the County Court of Trinity County, Texas, in the county courtroom in the courthouse thereof, which will be the place of holding the court, at or before 10:00 o'clock A.M. on the first Monday after such service is perfected by the completion of such posting, which day will be the return day hereof, and will be the 5th day of August, 1968, and should they or any of them desire to do so, file written answer or answers contesting the application filed by Frederica Spletstoeser in said court on the 24th day of July, 1968, and now pending there, which will at such 10:00 o'clock hour and such place, by such court be acted on, for probate of the last will and testament of said E. W. Spletstoeser, filed with said application, the file number of such application and the docket number of such proceeding being No. _____ and the style of the case, that is of such proceeding, being the Estate of E. W. Spletstoeser, deceased.

If this citation is not served within 90 days after date of its issuance, it shall be returned unserved.

Herein fail not, but have you before such court at or before such hour on the first Monday after such service is perfected, which will be the said 5th day of August, 1968, this citation with your return thereon, showing how you have executed the same.

WITNESS Bettie Mae Ainsworth, Clerk of the County Court of Trinity County, Texas.

ISSUED AND GIVEN UNDER MY HAND AND THE SEAL OF SAID COURT at office in the City of Groveton, this 24th day of July, 1968.

Clerk, County Court, Trinity County,
Texas.

A true copy I certify.

Sheriff

OFFICER'S RETURN

Came to hand on the 24th day of July, 1968, at 10:00 o'clock A.M. and executed by posting a true copy hereof at the courthouse door of Trinity County, Texas, on the 24th day of July, 1968, and continuing such posting at such place for not less than ten days, exclusive of the day of posting before the return day thereof.

The distance actually travelled by me in serving such process was 0 miles and my fees are as follows: \$1.25

Sheriff, Trinity County, Texas

FILED
THIS

JUL 2 1968

By BETIE MAE AINSWORTH
County Clerk, Trinity County, Texas
Deputy

CITATIONTHE STATE OF TEXAS

TO ANY SHERIFF OR ANY CONSTABLE WITHIN THE STATE OF TEXAS-GREETING:

You are hereby commanded, by posting a copy hereof (which copy is delivered to you herewith) at the courthouse door of Trinity County, Texas, or at the place in or near such courthouse where public notices customarily are posted, for not less than ten days before the return day hereof, exclusive of the first day of service by so posting, to serve this citation and thereby command, require and cite all persons and all parties interested in the estate of E. W. Splettstoesser, deceased, and such service by posting shall be effective to command, require and cite them and each of them, and they and each of them are hereby commanded, required and cited to appear, in the County Court of Trinity County, Texas, in the county courtroom in the courthouse thereof, which will be the place of holding the court, at or before 10:00 o'clock A.M. on the first Monday after such service is perfected by the completion of such posting; which day will be the return day hereof, and will be the 5th day of August, 1968, and should they or any of them desire to do so, file written answer or answers contesting the application filed by Frederica Splettstoesser in said court on the 24th day of July, 1968, and now pending there, which will at such 10:00 o'clock hour and such place, by such court be acted on, for probate of the last will and testament of said E. W. Splettstoesser, filed with said application, the file number of such application and the docket number of such proceeding being No. 2086 and the style of the case, that is of such proceeding, being the Estate of E. W. Splettstoesser, deceased.

If this citation is not served within 90 days after date of its issuance, it shall be returned unserved.

Herein fail not, but have you before such court at or before such hour on the first Monday after such service is perfected, which will be the said 5th day of August, 1968, this citation with your return thereon, showing how you have executed the same.

WITNESS Bettie Mae Ainsworth, Clerk of the County Court of Trinity County, Texas.

ISSUED AND GIVEN UNDER MY HAND AND THE SEAL OF SAID COURT at office in the City of Groveton, this 24th day of July, 1968.

Bettie Mae Ainsworth
Clerk, County Court, Trinity County,
Texas.
Ly. Luedya Campbell, Deputy
A true copy I certify.

C. M. Lee

Sheriff

OFFICER'S RETURN

Came to hand on the 24th day of July, 1968, at 10:00 o'clock A.M. and executed by posting a true copy hereof at the courthouse door of Trinity County, Texas, on the 24th day of July, 1968, and continuing such posting at such place for not less than ten days, exclusive of the day of posting before the return day thereof.

The distance actually travelled by me in serving such process was 0 miles and my fees are as follows: \$1.25

C. M. Lee

Sheriff, Trinity County, Texas

By BETTIE MAE AINSWORTH
County Clerk, Trinity County, Texas

JUL 24 1968

THIS

FILED

NO. 2086

ESTATE OF E. W. SPLETTSTOESSER,
DECEASED.X
X
XIN THE COUNTY COURT OF
TRINITY COUNTY, TEXAS.ORDER AS TO PROOF OF WILL

This the 5th day of August, 1968, it duly appearing to the court that the will alleged in the application to probate the will of E. W. Splettstoesser, deceased, filed herein on the 24th day of July, 1968, is self-proved as provided in the Texas Probate Code, it is ORDERED that no further proof of its execution shall be necessary or taken, other than its being introduced in evidence.



County Judge, Trinity County, Texas

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AUG 12 1968
CLERK OF COUNTY COURT
TRINITY COUNTY, TEXAS

NO. 2086

ESTATE OF E. W. SPLETTSTOESSER,
DECEASED.X
X
XIN THE COUNTY COURT OF
TRINITY COUNTY, TEXAS.ORDER PROBATING WILL

This the 5th day of August, A.D. 1968, came on to be heard the written application of Frederica Splettstoesser, a resident of Trinity County, Texas, for the probate of a certain instrument in writing, dated the 11th day of June, 1964, and now produced in court, being filed herein with said application on the 24th day of July, 1968, purporting and alleged to be the last will of E. W. Splettstoesser, deceased, and due proof being taken in the manner required by law, and it appearing to the satisfaction of the court that this court has jurisdiction and venue over this estate, proceeding and subject matter, and that every citation and notice required by law has been duly issued, and served and returned in the manner and for the length of time required by law; and it being proved to the satisfaction of the court that the testator, E. W. Splettstoesser, at the time of executing said will was at least 19 years of age, was of sound mind, and died on the 3rd day of April, 1968, in Trinity County, Texas; that such testator executed such will with the formalities and solemnities and under the circumstances required by law to make it a valid will; that the said will has not been revoked by such testator and that it is entitled to probate as a muniment of title; and it further appearing that Frederica Splettstoesser was named in said will as executrix, but that applicant does not apply for letters testamentary, and it appearing, and the court and the judge thereof being of the opinion and satisfied, that there are no unpaid debts owing by such

estate of the testator, and that no necessity for administration upon such estate exists, and so finding and here reciting; and it further appearing that four years have not elapsed since the death of the said E. W. Splettstoesser, and that no other action is necessary to be had in the county court in relation to the settlement of such estate than the probating of such will;

It is, therefore, ORDERED, ADJUDGED and DECREED by the court that the said will on file herein be, and the same is hereby, as a muniment of title, admitted to probate and record as the last will of the said E. W. Splettstoesser, deceased, and such will, together with the application for probate thereof and all the testimony given in this proceeding shall be recorded in the minutes of this court, and it is further ORDERED that this cause be, and the same is hereby, closed.

And it appearing that no inventory and appraisement is required and that the filing of such will serve no useful purpose, the appointment of appraisers and the filing of an inventory and appraisement is hereby dispensed with.


County Judge

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